5. Company should file Form with the Registrar of Companies mentioning particulars of appointment of directors and Key Managerial Persons along with the Consent form signed by Directors, as an attachment within 30 days of the appointment of a director with necessary fee.
6. Articles of the Company may provide the provisions relating to retirement of the all directors. If such provision relating to retirement are not made in the articles. Provision in the Act will be applicable.

First Director

"First directors" mean those directors who hold office from the date of incorporation of the company. The first directors are usually named in the articles of association or are appointed by the directors.

In the case of a One Person Company, an individual being a member shall be deemed to be its first director until the director(s) are duly appointed by the member in accordance with the provisions of Section 152.

27.08 Qualifications of Director

As regards to the qualification of directors, there is no direct provision in the Companies Act, 2013. In general, a director shall possess appropriate skills, experience and knowledge in one or more fields of finance, law, management, sales, marketing, administration, research, corporate governance, technical operations or other disciplines related to the company's business. According to the different provisions relating to the directors; the following qualifications may be mentioned:

1. A director must be a person of sound mind.
2. A director must hold share qualification, if the article of association provides such.
3. A director must be an individual.
4. A director should be a solvent person.
5. A director should not be convicted by the Court for any offence, etc.

27.09 Disqualifications of a director

Section 164 of Companies Act, 2013, has mentioned the disqualification as mentioned below:

a) A person shall not be capable of being appointed director of a company, if the director is
   (a) Of unsound mind
   (b) An undercharged insolvent;
   (c) Has been convicted by a court for any offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months
   (d) Has not paid any call in respect of shares of the company held by him, whether alone or jointly with others.
   (e) An order disqualifying him for appointment as director has been passed by a court in pursuance of section 203
   (f) He has been convicted of the offence dealing with related party transactions under section 188.
   (g) He has not got the Director Identification Number.

27.10 Removal of Director

A Director of Company can be removed from his Office before the expiry of his term by

a) the Shareholders
b) the Central Government
c) the Company Law Board

A director can be removed from his office in any of the following three ways:

12th Commerce Unit 10.indd 251 12/14/2020 2:55:34 PM